

Aboriginal Studies 30



Urbanization and its Effects – Leah Dorion

<http://interactive-learning-objects.onlea.org/mapping/#/painting/painting-4>

Theme 2

Aboriginal Land Claims

Tawaw (Cree for welcome)

It is important to take a moment to recognize Elk Island Public School Division respectfully acknowledges we are located on Treaty 6 territory, a traditional gathering place for diverse Indigenous peoples including the Cree, Blackfoot, Metis, Nakota Sioux, Iroquois, Dene, Ojibway/ Saulteaux/ Anishinaabe, Inuit, and many others whose histories, languages, and cultures continue to influence our vibrant community.

Acknowledgment and Thanks

This document has been modified from an original created by C. Shepherd of Bev Facey High School. Many thanks to Mrs. Shepherd for generously sharing her resources, expertise, knowledge, and kindness. Maarsii! (Michif for “thank you”)

Note: The terms Indian, First Nations, Aboriginals, Native American, Indigenous Peoples, Métis and Inuit are used in reference to the country being discussed, the time period being discussed, and the document being reviewed. At no time is the term being used meant to be insensitive in any way to modern correct terminology. Within this course you will be reading from a plethora of historical documents, which can be emotional. We need to remember how far we have come and how far we still have to go to repair Indigenous/settler relationships. At all times, modern terminology will be the first choice as a descriptor, but if you feel an incorrect term has been used, please contact me to discuss the issue.

Indigenous Peoples are identified by their distinctive cultural practices and products associated with their historically occupied land and waterways. This module takes a look at traditional Indigenous worldviews with regard to land use and how the concept of property ownership from the traditional view was at odds with European worldviews.

Read the excerpt below taken from the University of Alberta's *Indigenous Canada: Looking Forward/Looking Back, Sovereign Lands*

Relationship to the Land

An appreciation of Indigenous peoples' relationship to the land begins with an understanding of Indigenous worldviews. Although Indigenous worldviews vary significantly between cultural groups, there are some common themes that differ from Western worldviews, especially in relation to the land. The role of human beings, our connection to other living beings, and the land are fundamentally different in an Indigenous context. Stories play a key role in communicating legal principles, our relationship to the land, and our roles and responsibilities.

An Indigenous worldview places humans in an interconnected relationship with the rest of living and nonliving beings. Indigenous Peoples see human beings as the caretakers of the land, recognizing that our survival depends on how we interact with each other and everything around us. A dominant Western worldview, on the other hand, places humans atop a hierarchical structure, and the land is seen as an inanimate thing from which we can take what we want without giving anything back.

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As we reviewed in theme 1, storytelling, or oral tradition, has been a way for Indigenous Peoples to pass on their culture since time immemorial.

Why are Placenames Important?

This is the story of Uvayuk – the first people/mountains.

The three mountains found in Nunavut (which means “our land” in the Inuktitut language) were made by the first three Inuit. They were giants, and their names were Uvayuk, Amaaqtuq, and Inuuhuktu. These giants were looking for food across the barren lands of the North but could not find enough to feed themselves. One after another, they fell from hunger and laid there to rest forever. These mountains are named after these first peoples to remind Inuit of their story. All lands in the North are named by Inuit as a way of describing not only the landscape but the stories that are passed down to each new generation. Inuit can navigate their way to a hunting place, camping place, or away from danger according to the descriptive names of places.

The name of a place is also a communication tool. People can understand where the place is located, and other information may be contained that helps to know why that place is important. For example, the Denésqiné (also known as Chipewyan Dene) community of

Lutsel K'e (which translates to "place of small fish") refers to the location of the townsite near the Snowdrift River. Ciscoes, small herring-like fish that are the primary diet of lake trout, spawn in the fall time and fill the Snowdrift River.

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Indigenous peoples have been on Turtle Island since time immemorial. Their connection to the land is very different from European or Western worldview. This difference is shown in the following oral tradition which stems from the Denésq̓liné (Dene) people.

Prior to European contact, the Denésq̓liné were recognized to be the most widely travelled and populous of all northern Athapaskan language groups with movement patterns that mirrored migrating barren-ground caribou herds. Despite their more settled lifestyle in recent years, many Denésq̓liné people continue to hunt, trap, fish, and otherwise travel across large distances of their traditional territory in and around the east arm of Great Slave Lake in the Northwest Territories. The Dene people refer to the Northwest Territories as Denendeh, the land of the people.

The Artillery Lake (?edacho tué) area and the Lockhart River that flows from Artillery Lake into the east arm of Great Slave Lake have been the core of Denésq̓liné territory for thousands of years, and these places are deeply intertwined with individual and community identity and spirituality. Oral history accounts and archaeological evidence show that people have been hunting for caribou at ?edacho tué since at least 3000 BCE. Many Denésq̓liné stories are suggestive of Denésq̓liné knowledge of the area dating back to post-glacial periods.

This traditional knowledge is used by scientists and conservationists today to monitor and predict caribou migrations!

Take a moment to read the following beautiful piece of oral tradition.

The Legend of Ts'anTui Theda – The Old Lady of the Falls

Told by late Zepp Casaway; translated by Archie Catholique, Lutsel K'e Dene First Nation (LKDFN)

I will tell you a true story about how it was in the beginning and how Ts'anTui Theda (the “old lady of the falls”) came to be. This story was passed on to me as it was passed on from generation to generation. The “old lady of the falls” has been there since the earliest of times.

It started in the place called Kaché (Fort Reliance) and ?edacho tué (Artillery Lake). It used to be called Beaver Lake in those days because there was a beaver living there. You could see the beaver's lodge if you happened to be out at ?edacho tué. People were often in that area because that is where they went caribou hunting in the fall time. Even today Dene people still go there to hunt caribou.

In those days there used to be a man. His name was Hachoghe. He was a big man. One day Hachoghe saw the beaver's lodge. He could see it because it was on top of a small hill. He decided he wanted to kill the beaver but saw that he would have to get the beaver out of the lodge. So he started to push the dirt to one side. (Today you can even see where he pushed the dirt to one side.) He was so busy digging and moving the dirt that he didn't notice that the beaver had another lodge in the narrows close to the mainland. It wasn't far from the main route that the Dene people used when they traveled in that area. But the beaver did not stop at that lodge. Instead, he went down the Lockhart River to the main lake – Tue Nedhe. The people there were starving. When they saw the beaver they thought they may be able to kill him. It was then that Hachoghe saw the beaver and ran after him with a shovel. He threw the shovel into the water but the smart beaver swam away. The handle of the shovel broke and Hachoghe had to leave it there, sticking out of the water. That is why when you go to the north end of ?edacho tué you see a rock sticking out of the water. That is the handle of Hachoghe's shovel.

After Hachoghe broke his shovel, he didn't give up. He continued to follow the smart beaver back up the Lockhart River. By then the Dene people from Tue Nedhe

were following Hachoghe. The river was strong and the beaver soon got tired and Hachoghe killed him. The Dene people were so hungry they went after the meat right away. There was enough meat from that beaver for all the Dene people for two or three days. But there was one woman who asked for the beaver's blood. Hachoghe told her he could not give her the beaver blood because there was not very much left.

So the woman sat down at the falls and waited.

All of the other Dene people followed Hachoghe who was chasing another beaver down the river. They were heading toward the east arm of Tue Nedhe. After a while, the people noticed that the woman was still back at the falls. So Hachoghe picked two healthy people to go back and look for her. They went all the way back up the Lockhart River and they found her sitting at the falls. She had been sitting there a long time and so she was stuck in the earth. The two people told her that Hachoghe was asking for her to return to Tue Nedhe. She said, "I cannot return with you. I have been sitting here too long and now I will be here for all eternity." Then she said, "Go back to where you came from. Go back to Hachoghe and the others and give them this message." So the two people returned to Hachoghe and the others and gave them the message. This is how the Dene people learned about the "old lady of the falls" (Ts'anTui Theda). From that day forward the Dene people have gone to visit the Ts'anTui Theda to pay their respects, share their worries, and to ask for help.

LAND Stewardship

Watch the following video on land stewardship by clicking the link or scanning the qr code:

["Since Time Immemorial": How Indigenous People Are Reviving Traditional Stewardship](#)



Assignment 2.1 Land Stewardship

Based on what you have watched and read so far, what do you think oral tradition teaches us about the Indigenous concept of land stewardship and how does it relate to what you currently know about land ownership?

Respond in paragraph form using the response criteria.

/16

Type or write your response here.

LAND CLAIMS



Read pages 108-155 of your Contemporary Issues Textbook and answer the questions below.

Speech to the British Columbia Legislature (page 108-110)

1. What three things does the Nisga'a treaty emphasize?
/3

Nisga'a Treaty - 2000

- The Nisga'a Treaty is a negotiated agreement between the Nisga'a Nation, the Government of British Columbia (B.C.) and the Government of Canada.
- The last step needed to give legal effect to the Treaty took place on April 13, 2000, when Parliament passed the *Nisga'a Final Agreement Act*.
- As part of the settlement in the Nass River valley nearly 2,000 square kilometres of land was officially recognized as Nisga'a, and a 300,000 cubic decameter water reservation was also created. The Bear Glacier Provincial Park was also created as a result of this agreement. The land-claim's settlement was the first formal treaty between a First Nation and the Province of British Columbia since colonial times.



The Value of Land (page 111-117)

2. Describe the value Indigenous Peoples place on their land into the following

categorical beliefs - give an example of each: /12

Economic Value:

Cultural Value:

Spiritual Value:

Educational Value:

Social Value:

Political Value:

Land Claims History (page 118-121)

The Nisga'a Nation Petition

3. Why is the Nisga'a petition such an important event in Canada's history? / 1

Land Claims and the Indian Act

4. How did the Canadian Federal Government change the laws to make it difficult for First Nations to pursue land claims until 1955? /3

The Calder Case

5. In the Calder case, what did the Supreme Court declare about Aboriginal title? /2

The Calder Case - 1973

- Supreme Court of Canada recognized the existence of aboriginal title in principle
- The Court ruled that aboriginal title is rooted in the 'long time occupation, possession and use' of traditional territories.
- Result: Canada initiates a Comprehensive Claims process for treaty negotiations across Canada



First Nations Land-Claims Issues (page 122-134)

6. Define the two types of land claims. /4

Office of Native Land Claims

7. What was the name of the 1981 updated Land Claims policy? /1

- a) About Time: A Native Claims Policy
- b) Truth and Reconciliation: A Native Claims Policy
- c) ONC: A Native Claims Policy
- d) In all Fairness: A Native Claims Policy

The Coolican Report

8. What are the four issues Aboriginal Peoples wanted the government to start considering in land-claims? /2

The Land-Claims Process

9. What is the ICC and what is its role? /2

10. Explain the 5 aspects of the comprehensive claim. /5

11. Explain the 5 aspects of a specific claim. / 5

12. What are two examples of third parties in land-claim disputes? /2

Paths to Resolution

13. When did the Cardston blockade take place? /1
14. In the space provided, record the events of the Oka Crisis. Do not worry about dates just record the main events chronologically. /6
15. What event did the Lubicon use to bring attention to the treatment of their land? /1

Metis and Non-Status First Nations Land Claims (page 135-142)

16. What are three ways someone lost status under the Indian Act? /2

Métis Land-Claims Issues

17. Why do you think the federal government only wanted to deal with individual Métis people? /2
18. What was the difference between the Métis Association of Alberta and other Métis groups fighting for land claims? /2
19. What was the settlement for the resource revenue court case the Métis Association of Alberta won against the Provincial Government? /4

A New Era in Métis and Non-Status Rights

20. What Aboriginal groups do the Federal Government claim responsibility for and which do they not? Why? /3
21. Who can Métis people contact in the government to express their concerns to? /1
 - a) Federal Interlocutor for Métis
 - b) Federal Interlocutor for Non-Status Indians

- c) Federal Interlocutor for Métis and Non-Status Indians
- d) Federal Interlocutor for Métis, Non-Status Indians and First Nations

Comprehensive Land Claim Settlements (page 143-155)

22. Fill in the Settled Comprehensive Claim next to the dates that are missing: /6

- 1975 –
- 1978 – The Northeastern Quebec Agreement
- 1984 – Inuvialuit Final Agreement
- 1992 –
- 1993 – Council for Yukon Indians Umbrella Final Agreement
- 1993 –
- 1995 – The Vuntut Gwich'in First Nation
- 1995 – The First Nation Of Nacho Nyak Dun
- 1995 –
- 1995 – The Champagne and Aishihik First Nations
- 1997 – The Little Salmon/Carmacks First Nation
- 1997 –
- 1998 – The Tr'ondek Hwch'in First Nation
- 2002 – The Ta'an Kwach'an Council
- 1994 –

- 2000 – The Nisga'a Agreement

James Bay and Northern Quebec Agreement

23. What brought about a change in Northern Quebec that made the government have to negotiate with the First Nations living there? /2

Agreement in Principle with the Dene and Métis of Treaty Eleven in the Northwest Territories

24. What was the 1990 AIP settlement for the Dene and Métis? /2

Umbrella Agreement with the Council of Yukon Indians

25. When the Council of Yukon First Nations negotiated with the government for the Umbrella agreement, who did they represent? /2

Nunavut Land Claims Agreement

26. What is the largest comprehensive land claim settlement in Canadian history?
/1
27. Why is it so important for public government to be culturally sensitive in Nunavut?
/2

28. How is the justice system different in Nunavut than the rest of Canada? /2

Assignment 2.2 Specific Land Claims

Respond in paragraph form using the response criteria.

Using all the resources at your disposal, review **TWO of the land claims from Alberta listed below**.

Lubicon Lake Cree Land Claim Woodland Cree Settlement Loon River Settlement Nakoda (Stoney) Submission	Siksika (Blackfoot) Submission Blood-Cardston Claim Peigan Nation Claim
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You **may** include the following elements:

- The main events and issues of each claim
- Include if, how and when they were settled
- If they are not settled, explain why.
- A timeline of important events

/16

Type or write your response below

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(Congratulations in Cree)

Theme Two

Assignment	Raw Score	Percentage Value	Points
2.0 Definitions and Short Answer Guiding Questions	/190	60%	
2.1 Land Stewardship (Critical Response)	/16	20%	
2.2 Specific Land Claims (Critical Response)	/16	20%	
Final Grade			/100

Theme 2: Aboriginal Land Claims

